Indian Laws

Constitutional Framework & Fundamental Rights

The Constitution of India is the cornerstone of the Indian legal system. It is the longest written constitution of any sovereign country in the world.

The Constitution of India (1950)

- **Article 14 (Right to Equality):** Guarantees equality before the law and equal protection of the laws to all persons within India.
- **Article 19 (Right to Freedom):** Guarantees six essential freedoms:
  - Speech and expression.
  - Assembly without arms.
  - Forming associations/unions.
  - Movement throughout India.
  - Residing in any part of the country.
  - Practicing any profession or trade.
- **Article 21 (Protection of Life and Liberty):** A fundamental pillar stating that no person shall be deprived of their life or personal liberty except according to procedure established by law.
- **Article 32 (Constitutional Remedies):** Known as the "Heart and Soul" of the Constitution, it allows citizens to move the Supreme Court for the enforcement of fundamental rights via Writs (Habeas Corpus, Mandamus, etc.).
- **Article 44 (Uniform Civil Code):** A Directive Principle urging the State to secure a uniform civil code for all citizens.

The New Criminal Justice System

In 2024-2025, India overhauled its colonial criminal laws. These are the current governing statutes:

1. Bharatiya Nyaya Sanhita (BNS)

- **Section 103 (Murder):** Replaces IPC Section 302. Defines punishment for murder, including a new provision for mob lynching (punishable by death or life imprisonment).
- **Section 113 (Terrorist Act):** For the first time, "Terrorism" is defined within the general penal law rather than just special statutes.
- **Section 63–72 (Sexual Offences):** Consolidates laws against women. Notably, Section 69 criminalizes sexual intercourse by deceitful means (false promise of marriage).
- **Section 356 (Defamation):** Retains criminal defamation but introduces "Community Service" as a possible punishment for the first time in Indian law.

2. Bharatiya Nagarik Suraksha Sanhita (BNSS)

- **Section 173 (Zero FIR):** Mandates that an FIR can be registered at any police station, regardless of jurisdiction.
- **Section 105 (Forensics):** Makes forensic investigation mandatory for crimes punishable by 7 years or more.
- **Section 480 (Bail Provisions):** Modernizes bail procedures and ensures that first-time offenders who have served one-third of their maximum sentence can be released on personal bond.

Civil, Commercial, and Personal Laws

These laws govern the day-to-day transactions and personal lives of 1.4 billion people.

1. Code of Civil Procedure (CPC), 1908

- **Section 9 (Jurisdiction):** Courts have the power to try all suits of a civil nature unless expressly barred.
- **Section 96 (Appeals):** Provides the right to appeal from any decree passed by a court exercising original jurisdiction.
- **Order 39 (Temporary Injunctions):** Rules for granting "stay orders" to prevent immediate harm to property or rights during a trial.

2. Companies Act, 2013

- **Section 135 (Corporate Social Responsibility):** Mandates that companies with a certain net worth/turnover must spend 2% of their average net profits on CSR activities.
- **Section 149 (Independent Directors):** Requires listed companies to have at least one-third of their board as independent directors to ensure transparency.
- **Section 2(62):** Introduced the "One Person Company" (OPC) model to help solo entrepreneurs.

3. The Hindu Marriage Act, 1955

- **Section 5 (Conditions):** Lays down requirements for a valid marriage (age, monogamy, sound mind).
- **Section 13 (Divorce):** Lists grounds for divorce, including cruelty, desertion, and mutual consent (Section 13B).

Economic, Tax, and Labor Laws

Regulations governing the flow of money and the protection of workers.

1. Income Tax Act, 1961

- **Section 80C:** The most popular section for individual taxpayers, allowing deductions for investments in LIC, PPF, and ELSS.
- **Section 194 (TDS):** Governs Tax Deducted at Source for various payments like salary, rent, and professional fees.
- **Section 147 (Income Escaping Assessment):** Powers given to the department to re-open tax assessments if they believe income has been hidden.

2. Consumer Protection Act, 2019

- **Section 2(7):** Broadens the definition of "Consumer" to include those making offline or online transactions (E-commerce).
- **Section 94 (Unfair Trade Practices):** Provides strict measures against misleading advertisements and "dark patterns" in digital sales.

3. Code on Social Security, 2020

- This code consolidates 9 previous labor laws. It extends social security benefits (like insurance and pensions) to **gig workers** and **platform workers** (Zomato, Swiggy, Uber drivers).

Page 5: Digital, Intellectual Property, and Environmental Laws

Forward-looking laws for the digital age and the protection of the planet.

1. Digital Personal Data Protection (DPDP) Act, 2023

- **Section 4 (Data Fiduciary):** Establishes that any entity collecting data is responsible for its safety.
- **Section 8 (Data Principal Rights):** Gives citizens the right to access, correct, or erase their personal data from company databases.

2. Information Technology (IT) Act, 2000

- **Section 66A (Cybercrimes):** Deals with identity theft and cheating by personation using computer resources.
- **Section 69A:** Gives the government the power to block public access to any information in the interest of national sovereignty or public order.

3. Environment Protection Act, 1986

- **Section 15 (Penalties):** Provides for imprisonment and heavy fines for contravention of environmental standards.
- **Biological Diversity Act, 2002:** Regulates access to biological resources to ensure fair sharing of benefits with local communities.